

Tentative Rulings
July 7, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *C.A.H.P. Credit Union v. Gruidl, et al*, Case No. CIVSB2518609
Plaintiff's Motion for Attorneys' Fees
7/7/26, 8:30 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Here, the Court granted Plaintiff's unopposed Motion for Summary Judgment as to this collections matter March 9, 2026. (See Order, 3/9/26.) Thus, Plaintiff is the prevailing party. (See Code Civ. Proc., § 1032 [defining "prevailing party"].)

"In any action on a contract where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded to the prevailing party" (Code Civ. Proc., § 1717(a).) Here, such a contract provision exists. (See Robie Decl., ¶¶8-11 & Exh. 1 [contract].) Further, Plaintiff has set forth a detailed lodestar analysis supporting the requested fees. (See Rocha Decl., ¶¶3-6 & 11.) The Court finds the billing rates consistent with the regional rates given the experience of the attorneys. Thus, the Court would grant attorneys' fees in the amount of \$7,024.50 (reduced by two hours to reflect that lack of any opposition or necessary reply).

15. *Kaiser Foundation Health Plan, Inc., v. Imperial*, Case No. CIVSB2523812
Appellant's Motion for Summary Judgment
7/7/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT** the motion and reverse the award of unpaid minimum wages and liquidated damages to Respondent. Here, (1) Appellant cannot be liable for unpaid wages because it was not Respondent's employer; (2) Respondent released any claim for unpaid minimum wages through his membership in two class action settlements; and (3) Respondent failed to comply with the condition precedent of his collective bargaining agreement (CBA) grievance procedures. (UF, Nos. 1-3, 7-11, 13-14, 17, 25-32, 34-42, 45-51, and 53-54, and cited evidence: Labor Commissioner Order, Decision, and Award [Exh. A]; Responses to Requests for Admissions [Exh. D]; Wage Statements [Exhs. E-F]; Myette & Schwermer-Sween Declarations and Exhibits thereto; as well as Final Settlement Approval Orders [Exhs. H & J] and the CBA [Exh. K].

Case Summary

This is an appeal from a Labor Commissioner's Order, Decision, and Award relating to unpaid wages. The underlying case relates to wages relating to pay periods January 1, 2020, through December 31, 2020, and January 1, 2021, through December 31, 2021. The Labor Commissioner